



CHAPTER ci.

An Act to empower the mayor aldermen and burgesses of the borough of Reading to construct additional tramways and to provide and run trolley vehicles and omnibuses and to make further provision for the health local government and improvement of the borough and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS the mayor aldermen and burgesses of the borough of Reading (in this Act called “the Corporation”) are the owners of tramways in the borough and it is expedient to empower the Corporation to construct the additional tramways referred to in this Act and to provide and work omnibuses including omnibuses worked by electrical power transmitted thereto from some external source :

And whereas it is expedient to make further and better provision with regard to the streets and buildings in the borough and that the powers of the Corporation in regard to the health local government and improvement of the borough be enlarged as in this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

(a) For the construction of the tramways authorised by this Act and other purposes of the tramway undertaking of the Corporation - - - - -	£ 3,100
[Price 3s. 6d.] A	1

A.D. 1914. ---	(b) For the provision of the trolley vehicles authorised by this Act - - -	£ 6,800
	(c) For the provision of the electrical equipment and the construction of the other works necessary for the tramways and trolley vehicles authorised by this Act - - -	6,000
	(d) For motor omnibuses - - -	3,500
	(e) For the provision of dépôt accommodation for trolley vehicles and omnibuses -	2,400

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act were duly deposited with the clerk of the peace for the county of Berks and are in this Act respectively referred to as the deposited plans and sections :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Reading Corporation Act 1914.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—
 Part I.—Preliminary.
 Part II.—Tramways Trolley Vehicles and Omnibuses.
 Part III.—Streets Buildings Sewers and Drains.
 Part IV.—Infectious Disease and Sanitary Provisions.
 Part V.—Finance.
 Part VI.—Miscellaneous.

Incorporation of Acts. 3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent

with the provisions of this Act) are hereby incorporated with this Act (namely):— A.D. 1914.

- (1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement); and
- (2) Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870:

Provided that the said section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Reading;

“The borough” means the county borough of Reading;

“The council” means the council of the borough;

“The mayor” “the town clerk” “the treasurer” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the mayor the town clerk the treasurer the medical officer of health the surveyor and any inspector of nuisances for the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads and moved by electrical power transmitted thereto from some external source;

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“Trolley vehicle routes” means the routes upon which the Corporation are by this Act authorised to work and use trolley vehicles;

“Omnibus” means any stage carriage not being a trolley vehicle moved by mechanical power including in that expression steam electrical and every other motive power not being animal power;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 and any Act amending the same applies for the time being within the borough;

“Statutory security” and “statutory borrowing power” have respectively the meanings assigned to those expressions by section 3 (Interpretation) of the Act of 1913;

“The Act of 1881” means the Reading Corporation Act 1881;

“The Order of 1899” means the Reading Corporation Tramways Order 1899 which was confirmed by the Tramways Orders Confirmation (No. 1) Act 1899;

“The Act of 1900” means the Reading Corporation (Tramways) Act 1900;

“The Order of 1911” means the Reading (Extension) Order 1911 which was confirmed by the Local Government Board’s Provisional Order Confirmation (No. 11) Act 1911; and

“The Act of 1913” means the Reading Corporation Act 1913.

PART II.

TRAMWAYS TROLLEY VEHICLES AND OMNIBUSES.

Power to
make tram-
ways.

5.—(1) Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turnouts crossings passing-places posts poles brackets wires waiting-rooms carriage-houses sheds depôts buildings engines works and conveniences connected therewith.

(2) The tramways hereinbefore referred to and authorised by this Act will be situate in the borough and are— A.D. 1914.

Tramway No. 1 (Double line 3·68 chains in length) situate in Caversham Road commencing at a point 9 feet 6 inches north of the north side of Randolph Road and terminating at a point 140 feet south of the south abutment of the present Caversham Bridge:

Tramway No. 2 (Double line 1 furlong 4·5 chains in length) commencing at the termination of Tramway No. 1 passing over the Caversham Bridge authorised by the Act of 1913 along Bridge Street and Church Road and terminating in the last-named road at a point 153 feet east of St. Anne's Road.

(3) Provided that so much of the said tramways as is proposed to be constructed in the part of a road the widening of which is authorised by the Act of 1913 shall not be completed until such part has been widened.

6.—(1) The tramways and works authorised by the foregoing provisions of this Part of this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Order of 1899 and of the enactments incorporated with that Order and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways and works as if they were authorised by the Order of 1899.

Works to form part of tramway undertaking of Corporation.

(2) Provided that no post or other apparatus shall be erected on any carriageway in connection with the tramways authorised by this Act except with the consent of the Board of Trade.

7. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of tramways.

8.—(1) Notwithstanding anything contained in the Order of 1899 in the Act of 1900 or in this Act the Corporation with the consent of the Board of Trade may—

Alteration of tramways.

(a) Make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by the Acts relating to any of the tramways of the

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Corporation as they find necessary or convenient for the efficient working of those tramways or for forming junctions with other tramways or light railways or for providing access to any warehouses stables or carriage-houses or works of the Corporation ;

(b) Lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of their tramways either when constructing the tramways or at any time thereafter ; and

(c) Construct or take up and reconstruct any of their tramways in such position in the road in which it is authorised to be constructed as they may think fit.

(2) Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that a less space than nine feet six inches would intervene between such rail and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

(3) Section 13 (Alteration of tramways) and section 15 (Additional crossings &c. may be made where necessary) of the Order of 1899 are hereby repealed.

Power to use
trolley
vehicles.

9.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may use the same upon the trolley vehicle routes.

(2) The trolley vehicle routes are wholly in the borough and are—

Route No. 1 Along Bath Road from its junction with Liebenrood Road Castle Street across St. Mary's Butts along Gun Street Minster Street Broad Street Queen Victoria Street across Friar Street and along Station Road to the junction of the last named road with Blagrove Street :

Route No. 2 From the junction of Broad Street with Minster Street through the Butter Market and Market Place and along Blagrove Street to its junction with Forbury Road: A.D. 1914.

Route No. 3 From the end of Route No. 1 along Blagrove Street Forbury Road Vastern Road De Bohun Road crossing the River Thames by means of the intended bridge to and along George Street along Gosbrook Road and Church Street Church Road St. Anne's Road Priest Hill the Mount and Albert Road to the junction of that road with Harrogate Road:

Route No. 4 From the junction of Bridge Street with Castle Street and Gun Street along Bridge Street and Mill Lane to the junction of that lane with Bath Court:

Route No. 5 In Station Road from its junction with Blagrove Street to the station of the Great Western Railway Company.

10.—(1) The Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working trolley vehicles by electrical power and may for that purpose subject to the provisions contained in Part II. of the Tramways Act 1870 and in this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder. As to electrical works.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the former Act apply.

11. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working trolley vehicles and any person (except by agreement with the Corporation) using the said apparatus shall be liable to a penalty not exceeding twenty pounds. Corporation to have exclusive right of using apparatus for working trolley vehicles.

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Vehicles not
to be deemed
light loco-
motives or
motor cars.

12. Trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 of that Act and the provisions necessary for enforcing that subsection) and subject to that exception neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to trolley vehicles.

Licence
duties on
trolley
vehicles.

13. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as carriages or light locomotives or hackney carriages.

Approval of
vehicles and
equipment
by Board of
Trade.

14.—(1) Trolley vehicles and the working equipment shall be of such form weight construction and dimensions as the Board of Trade may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Board of Trade.

(2) No post or other apparatus shall be erected on the carriageway of any street or road except with the consent of the Board of Trade.

Application
of certain
provisions
of Tramways
Act 1870 to
trolley
vehicles.

15.—(1) The following provisions of the Tramways Act 1870 incorporated with this Act shall apply to trolley vehicles and such provisions shall be read and have effect as if the works to be constructed in the footpaths or carriageways of the streets for moving trolley vehicles by electrical power were tramways and as if trolley vehicles were carriages used on tramways:—

Part II. (Relating to the construction of tramways) except sections 25 28 and 29;

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in byelaws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

Section 51 (Penalty on passengers practising frauds on the promoters);

- Section 52 (Transient offenders); A.D. 1914.
 Section 53 (Penalty for bringing dangerous goods on the tramway);
 Section 55 (Promoters or lessees to be responsible for all damages);
 Section 56 (Recovery of tolls penalties &c.);
 Section 57 (Right of user only);
 Section 60 (Reserving powers of street authorities to widen &c. roads); and
 Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other vehicle is to be kept.

16. The following provisions of the Order of 1899 and of the Act of 1913 shall extend and apply to the trolley vehicles as if those provisions were with all necessary modifications re-enacted in this Act Provided that in the application of those provisions the same shall be read and have effect as if trolley vehicles were carriages used on the tramways of the Corporation :—

Applying certain provisions of recited Acts to trolley vehicles.

Order of 1899—

- Section 18 (Tramways not to be opened until certified by Board of Trade);
 Section 21 (Provisions as to motive power);
 Section 23 (Mechanical power works to be subject to section 30 of Tramways Act 1870);
 Section 24 (Byelaws);
 Section 25 (Amendment of the Tramways Act 1870 as to byelaws by local authority);
 Section 26 (Special provisions as to use of electrical power);
 Section 28 (Applying provisions of Order of 1878 as to traffic and tolls);
 Section 29 (As to fares on Sundays or holidays);
 Section 30 (Periodical revision of tolls);
 Section 34 (Regulations);
 Section 35 (Working agreements);

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Section 36 (Orders &c. of the Board of Trade);

Section 42 (Provisions as to arbitration):

Act of 1913—

Section 49 (Attachment of brackets to buildings for tramways).

Board of
Trade may
authorise
new routes.

17.—(1) If the Corporation desire to use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the trolley vehicle routes hereinbefore referred to) they may make application to the Board of Trade describing the route and the Board of Trade shall be and are hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any road or roads described in the application:

Provided that the Board of Trade shall not make a Provisional Order under this section relating to a road or portion of a road outside the borough except with the consent of the local authority of the district in which such road or portion of a road is situate and of the road authority for such road or portion of a road.

(2) No such application shall be entertained by the Board of Trade unless the Corporation shall—

(a) Have published once in each of two successive weeks in the month of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the borough:

(b) Have also published such notice once in the month of October or November in the London Gazette:

(c) Have posted for fourteen consecutive days in the month of October or November in conspicuous positions in each of the roads to which such application relates a notice of their intention to make such application:

And each such notice shall state the time and method for bringing before the Board of Trade any objections to the grant of such application.

(3) The Board of Trade may and they are hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Board of Trade shall consider any such application and may if they think fit direct an inquiry to be held in the borough in relation thereto or may otherwise inquire as to the

propriety of proceeding upon such application and they shall consider any objection to such application that may be lodged with them in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition. A.D. 1914.

(5) In any case where it shall appear to the Board of Trade expedient and proper that the application be granted they may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(7) The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Board of Trade in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Board of Trade in connection with any inquiry under this section shall be paid by the Corporation.

(10) Provided that any Provisional Order to be obtained by the Corporation under the Tramways Act 1870 authorising the construction of tramways in the borough may authorise the Corporation to use trolley vehicles upon all or any of the streets or roads along which such tramways are authorised to be constructed in lieu of such tramways and pending the construction thereof.

18.--(1) Notwithstanding anything in this Act or in the Order of 1899 contained if any of the works authorised to be

For protec-
tion of

A.D. 1914.
Postmaster-
General.

executed by this Act or by the Order of 1899 involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(2) In the event of any tramways or trolley vehicles of the Corporation being worked by electricity the following provisions shall have effect:—

(a) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration:

(b) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:

(c) Before any electric line is laid down or any act or work for working the tramways or trolley vehicles by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time

be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :

- (d) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (e) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (f) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution

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thereof stating the reason for doing or executing the same without previous notice :

- (g) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (h) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (i) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (j) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (k) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (l) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the tramways or the trolley vehicle system of the Corporation.

(3) Section 27 (For protection of the Postmaster-General) of the Order of 1899 is hereby repealed.

Use of tram-
way or trol-
ley vehicle
posts by
Postmaster-
General.

19.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the tramways or trolley vehicles authorised by this Act or by an order under this Act

(in this section referred to as “the tramways”) and to lengthen, adapt, alter and replace such posts, standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported, subject to the following conditions:—

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- (a) In placing, maintaining or altering such telegraph, no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (b) The Postmaster-General shall give to the Corporation not less than twenty-eight days’ notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts, standards and brackets and also the maximum strain and the nature and direction of such strain. Any difference as to any matter referred to in such notice shall be determined as hereinafter provided:
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation, the Postmaster-General shall pay the expense of lengthening, adapting, altering or replacing under the provisions of this section any post, standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General’s telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided, all telegraphs shall be attached to the posts, standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires. Any difference as to the conditions of attachment shall be determined as hereinafter provided:

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- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided:
- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants:
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter

or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same Provided that if the Corporation object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

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(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramway or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Corporation” includes their lessees;
The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

20.—(1) The Corporation may provide (but shall not manufacture) and maintain omnibuses and may run the same within the borough.

Power to provide and run omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them for or which they are authorised to appropriate and use for the purposes of this section or of their tramway undertaking omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of such omnibuses but the Corporation shall not create or permit any nuisance on any such lands.

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(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in their omnibuses Provided that any such byelaw shall be made subject and according to the provisions of sections 46 and 47 of the Tramways Act 1870 and those provisions shall apply accordingly.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

Fares rates and charges.

21.—(1) The Corporation may demand and take in respect of the carriage of passengers upon trolley vehicles or omnibuses fares rates and charges not exceeding the fares rates and charges which the Corporation could have charged if such vehicles or omnibuses had been carriages upon the tramways of the Corporation.

(2) The Corporation may demand and take in respect of the carriage of parcels upon trolley vehicles or omnibuses rates and charges not exceeding the rates and charges which the Corporation could have charged for the carriage of parcels if such vehicles or omnibuses had been carriages upon the tramways of the Corporation.

Power to appoint stages.

22. The Corporation may appoint stages upon any of their tramways or trolley vehicle routes and in respect of omnibuses and may demand and take for every passenger travelling upon any such stage such reasonable fares rates or charges not exceeding the fares rates and charges authorised to be taken in respect of the tramways trolley vehicles or omnibuses (as the case may be) as may be determined by the Corporation.

Corporation may appoint stopping and starting places.

23. The Corporation may appoint the stations and places from which the carriages on their tramways their trolley vehicles and their omnibuses shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such carriages vehicles and omnibuses shall be allowed to remain at any such place.

Payment of fares rates and charges.

24. The fares rates and charges by this Act authorised shall be paid to such persons and at such places upon or near to the trolley vehicles or omnibuses and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of fares rates and charges appoint.

25. The restrictions contained in this Act and in the Acts relating to the tramways of the Corporation as to fares for passengers shall not extend to any special carriages run upon the tramways of the Corporation or to special trolley vehicles or omnibuses or to any special service of such carriages vehicles or omnibuses on extraordinary occasions and in respect thereof the Corporation may demand and take such fares as they shall think fit but such restrictions shall apply only to the ordinary service of carriages trolley vehicles and omnibuses appointed from time to time for the conveyance of passengers Provided that the running of such special service shall in no way curtail the ordinary service.

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Restrictions not to apply to special carriages.

26. If any person wilfully and unlawfully does or causes to be done with respect to any apparatus used for or in connection with the working of the tramways or trolley vehicles of the Corporation anything which is calculated to obstruct or interfere with the working of such tramways or trolley vehicles or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence shall be liable to a penalty not exceeding twenty pounds.

Penalty for malicious damage.

27. The Corporation may erect and maintain shelters or waiting rooms for the accommodation of passengers on the routes of the tramways trolley vehicles or omnibuses of the Corporation and of the servants of the Corporation and may use for that purpose portions of the public streets or roads but the Corporation shall not use for that purpose any portion of a public street or road outside the borough except with the consent of the road authority.

Shelters or waiting rooms.

28. Any property found in any tramcar trolley vehicle or omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the tramway undertaking.

Lost property.

29.—(1) The Corporation shall not exhibit or permit the exhibition of advertisements in respect of which a payment is

Posts are not to be used for advertisements.

A.D. 1914. — made to the Corporation on any posts or standards of the Corporation erected in any street other than advertisements relating to the service of the tramcars trolley vehicles or omnibuses.

(2) In case of any contravention of the provisions of this section the Corporation shall be liable to a penalty not exceeding five pounds.

Attachment
of signs indi-
cating stop-
ping places
to lamp-posts
&c.

30.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of the tramways trolley vehicles or omnibuses of the Corporation signs or directions indicating the position of stopping places for tramways trolley vehicles and omnibuses. Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

Conveyance
of mails.

31. The Corporation shall perform in respect of trolley vehicles and omnibuses all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

Trolley
vehicles and
omnibuses to
form part of
tramway
undertaking.

32. The trolley vehicle and omnibus undertaking authorised by this Part of this Act shall be deemed to form part of the tramway undertaking of the Corporation. Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with trolley vehicles and omnibuses shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking.

33. For the protection of the Great Western Railway Company (in this section hereinafter referred to as "the Great Western Company") the following provisions shall unless otherwise agreed between the Corporation and the Great Western Company apply and have effect (that is to say):—

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For protec-
tion of Great
Western
Railway
Company.

- (1) The powers by this Act conferred upon the Corporation with respect to trolley vehicle routes Nos. 1 3 and 5 and the running of trolley vehicles thereover or otherwise in relation thereto shall not where the said routes will pass over the property of the Great Western Company at and adjoining Reading Station be exercised without the consent in writing of the Great Western Company first had and obtained:
- (2) Before commencing any works under the powers of this Act affecting any of the bridges over or under the railway of the Great Western Company or the roadway on or under any such bridge or over any level crossing of that railway or over the immediate approaches to any such bridge or level crossing the Corporation shall submit plans sections and all necessary particulars of such works to the Great Western Company for their reasonable approval and if so approved the said works shall be constructed and carried into effect in conformity with such plans sections and particulars and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer to the Great Western Company:

All such works shall thereafter be maintained and repaired by the Corporation under the like superintendence (if given) and to the reasonable satisfaction of the engineer to the Great Western Company:

The approval as aforesaid of the Great Western Company shall not be unreasonably withheld and it shall be deemed to have been given unless the Great Western Company signify their disapproval within twenty-eight days after submission of the said plans and sections:

- (3) The Corporation shall not in the construction alteration maintenance or use of the said works by this Act authorised injure alter or interfere with the railway

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of the Great Western Company or with the structure of any bridge over or under such railway or cause any interruption to or interference with the traffic on that railway or the canal of the Great Western Company or at to or from any station or depôt thereon :

- (4) If any such injury or interruption shall arise the Corporation shall make full compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed to be determined by arbitration in the manner hereinafter provided :
- (5) The Corporation shall on demand pay to the Great Western Company the reasonable expense (including compensation payable to any workmen or their legal representatives or dependants who may be injured or killed whilst employed by the Great Western Company in and about such work) of lighting and watching the railways and works of the Great Western Company with reference to and during the execution or repair by the Corporation under this Act of any work affecting any bridge level crossing or other work belonging to the Great Western Company for preventing so far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise :
- (6) The Corporation shall be responsible for and make good to the Great Western Company all losses damages and expenses which may be occasioned to the Great Western Company or any of their works or to any company or person using their railway during the execution or by reason of the failure of any of the works of the Corporation or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for such works or any part thereof and the Corporation shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission including

compensation payable by the Great Western Company to any workmen or their legal representatives or dependants: A.D. 1914.

- (7) The Corporation shall not under the powers of this Act run omnibuses over the bridge of the Great Western Company which carries Burghfield Road over their railway:
- (8) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the Great Western Company at any point where the wires of the Great Western Company pass over or under the trolley vehicle routes by this Act authorised it is reasonably necessary that the electrical telegraph telephone or signal wires or appliances or apparatus belonging to or maintainable by the Great Western Company shall be altered the Great Western Company may after reasonable notice to the Corporation execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:
- (9) If the Great Western Company shall at any time hereafter in the exercise of their existing powers require to lift widen strengthen reconstruct alter or repair their said railways or bridges under or upon which the works in connection with the trolley vehicle routes by this Act authorised are laid and if it shall be necessary for such purposes that the working or using of the trolley vehicles or any apparatus used in connection therewith shall be wholly or in part stopped or delayed or any apparatus or equipment be temporarily wholly or in part taken up diverted or removed and if the Great Western Company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up diversion or removal then the working or user of the trolley vehicles or apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice by the Corporation but no such working or user shall be stopped

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or delayed for a longer period than may be necessary for effecting such purposes as aforesaid and such part of the apparatus shall be restored with all practicable despatch but the Great Western Company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal:

- (10) The Corporation shall from time to time pay to the Great Western Company any additional expense which the Great Western Company may reasonably incur in effecting such lifting widening strengthening reconstruction altering or repairing as is mentioned in the last preceding subsection or in the maintenance or renewal of any bridge or other work of the Great Western Company by reason of the existence or user of the said trolley vehicle routes apparatus or equipment:
- (11) If and when the Great Western Company shall require to reconstruct alter repair or paint any bridge under or over which any electric wire of the Corporation has been placed the Corporation shall in order to secure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under or over such bridge at such time or times as shall be reasonably required by the engineer of the Great Western Company unless the Corporation adopt some other means of protection to workmen reasonably approved by the said engineer:
- (12) The Corporation shall not for the purposes of this Act erect any post or posts or other works on or make attachments to the structure of any bridge or other works or property of the Great Western Company without the consent in writing of the engineer of the Great Western Company which consent shall not be unreasonably withheld:

Such posts works and attachments if allowed shall be in all respects subject to the reasonable approval of the said engineer and shall be temporarily removed at any time when required by him in connection with the maintenance reconstruction alteration or widening of the said bridge or other works or property:

(13) Notwithstanding anything contained in this Act the Corporation shall not without the consent in writing of the Great Western Company under the hand of their secretary or general manager erect any shelter or waiting room in front of or in close proximity to the entrances to or exits from the stations depôts and premises of the Great Western Company so as to impede or interfere with the traffic to and from such stations depôts and premises of the Great Western Company or on or under the bridges over or under the railways of the Great Western Company over or under which the trolley vehicles may pass: A.D. 1914.

(14) Notwithstanding anything contained in this Act or in any byelaws made thereunder no trolley vehicle or motor omnibus shall without the consent of the Great Western Company stop in front of or in close proximity to the entrance to or exit from any station depôt or premises of the Great Western Company so as to impede or interfere with the traffic to and from such stations depôts and premises of the Great Western Company:

(15) Where the Corporation under the powers of this Act stop up temporarily any road or street in front of or in close proximity to the Great Western Company's stations and depôts they shall provide such temporary means of access to such stations and depôts as the Great Western Company reasonably require:

(16) If any difference shall arise between the Corporation and the Great Western Company under this section the same shall be determined by an arbitrator to be agreed upon between the Corporation and the Great Western Company or failing agreement to be nominated by the President of the Institution of Civil Engineers on the application of any of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

34. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies' Managing Committee (hereinafter together referred to as "the railway company") the following provisions shall unless other- For protection of South Eastern Railway Company

A.D. 1914.
and South
Eastern and
Chatham
Railway
Companies'
Managing
Committee.

wise agreed in writing between the Corporation and the railway company apply and have effect (that is to say) :—

(1) Notwithstanding anything in this Act contained the Corporation shall not exercise any of the powers of this Part of this Act with respect to the running of trolley vehicles or the placing and erection of electrical works on Route No. 5 so far as the same affect the railway or property of the railway company at or adjoining their Reading Station without the consent in writing of the railway company first had and obtained :

(2) Before commencing any works under the powers of this Part of this Act affecting the bridge carrying the South Eastern Railway over Vastern Road the Corporation shall submit plans sections and all necessary particulars of such works to the railway company for their reasonable approval and if so approved the said works shall be constructed and carried into effect in conformity with such plans sections and particulars and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer to the railway company :

All such works shall thereafter be maintained by the Corporation under the like superintendence (if given) and to the reasonable satisfaction of the said engineer :

The approval as aforesaid of the railway company shall not be unreasonably withheld and it shall be deemed to have been given unless the railway company signify their disapproval within twenty-eight days after submission of the said plans sections and particulars :

(3) The Corporation shall not in the construction alteration maintenance or use of any of the works authorised by this Act injure alter or interfere with the railways of the railway company or with the structure of the said bridge or cause any interruption to or interference with the traffic on the said railways or at to or from any station thereon :

(4) If any such injury or interruption shall arise the Corporation shall make full compensation to the railway

company in respect thereof the amount of such compensation unless otherwise agreed to be determined by arbitration as hereinafter provided: A.D. 1914.

- (5) If having regard to the position of any works of the Corporation by this Part of this Act authorised when considered in relation to the position of the works of the railway company at any point where the wires of the railway company pass over the trolley vehicle routes it is reasonably necessary that the electrical telegraph telephone or signalling apparatus or appliances belonging to or maintainable by the railway company shall be altered the railway company may after reasonable notice to the Corporation execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:
- (6) If the railway company shall at any time hereafter in the exercise of their existing powers require to lift widen lengthen strengthen reconstruct alter repair or paint their said railway bridge or works under or upon which the works in connection with the trolley vehicle routes by this Act authorised are laid and if it shall be necessary for such purposes that the working or user of the trolley vehicles or any apparatus used in connection therewith shall be wholly or in part stopped or delayed or any apparatus or equipment be temporarily wholly or in part taken up diverted or removed and if the railway company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up diversion or removal then the working or user of the trolley vehicles or apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice by and at the expense of the Corporation but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purposes as aforesaid and such part of the apparatus shall be restored with all practicable despatch but the railway company shall not be liable to pay compensation in

A.D. 1914.
—

respect of such stoppage delay or taking up diversion or removal:

- (7) The Corporation shall from time to time pay to the railway company any additional expense which the railway company may reasonably incur in effecting such lifting widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance or renewal of such bridge or other work of the railway company by reason of the existence or user of the trolley vehicle routes apparatus or equipment:
- (8) If and when the railway company shall require to reconstruct lift widen lengthen strengthen alter repair or paint the said bridge the Corporation shall in order to secure the safety of the workmen employed in such reconstruction lifting widening lengthening strengthening alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time or times as shall be reasonably required by the engineer of the railway company unless the Corporation adopt some other means of protection to workmen reasonably approved by the said engineer:
- (9) The Corporation shall not for the purposes of this Part of this Act erect any post or posts or other work on or make attachments to the structure of the said bridge or other works or property of the railway company without the consent in writing of the engineer of the railway company which consent shall not be unreasonably withheld:

Such posts works and attachments if allowed to be in all respects subject to the reasonable approval of the said engineer and to be temporarily removed at any time when required by him in connection with the maintenance and reconstruction alteration lengthening or widening of the said bridge or other works or property:

- (10) Notwithstanding anything contained in this Part of this Act the Corporation shall not without the consent in writing of the railway company under the hand of their secretary or general manager erect any shelter

or waiting room in front of or in close proximity to the entrances to or exits from the station and premises of the railway company so as to impede or interfere with the traffic to and from such station and premises : A.D. 1914.

- (11) No trolley vehicle used on Route No. 3 by this Act authorised shall be permitted to be stopped in front of or in close proximity to the entrances to the Vastern Road goods depôt of the railway company so as to impede or interfere with the traffic to and from such depôt :
- (12) Where the Corporation under the powers of this Part of this Act stop up temporarily any road or street in front of or in close proximity to the station of the railway company they shall provide such temporary means of access to such station as the railway company may reasonably require :
- (13) The Corporation shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or to any person using their railway during the execution or by reason of the failure of any of the works of the Corporation or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for such works or any part thereof and the Corporation shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (14) If any difference shall arise between the Corporation and the railway company under this section the same shall be determined by an arbitrator to be agreed upon between the Corporation and the railway company or failing agreement to be nominated by the President of the Institution of Civil Engineers on the application of either of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

35. Whenever the Corporation shall desire under the authority of this Act to effect any alteration diversion or stopping For protection
of Reading
Gas Company.

A.D. 1914. — up of any of the mains pipes valves plugs or other apparatus or works belonging to or under the control of the Reading Gas Company the Corporation shall give to the Reading Gas Company fourteen days' notice in writing of such desire and the Reading Gas Company shall forthwith make such alteration displacement or removal as the case may be and do all works incident thereto to the reasonable satisfaction of the Corporation and all expenses that may be thereby reasonably incurred shall be defrayed by the Corporation.

For protec-
tion of Read-
ing Electric
Supply
Company
Limited.

36. Whenever the Corporation shall desire under the authority of this Act to effect any alteration diversion or stopping up of any of the electric lines or other apparatus or works belonging to or under the control of the Reading Electric Supply Company Limited the Corporation shall give to that company fourteen days' notice in writing of such desire and that company shall forthwith make such alteration displacement or removal as the case may be and do all works incident thereto to the reasonable satisfaction of the Corporation and all expenses that may be thereby reasonably incurred shall be defrayed by the Corporation.

PART III.

STREETS BUILDINGS SEWERS AND DRAINS.

Continuation
of existing
streets to be
deemed new
streets.

37. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made under the Public Health Acts and for the time being in force within the borough be deemed to be a new street.

Widening of
roads when
only one side
is built upon.

38.—(1) When a road footpath or way is about to become a new street within the meaning of the Public Health Acts but the land on only one side of such street has been or is in course of being built on the Corporation may instead of requiring the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the borough require such owner to widen such road footpath or way so as to give a width of not less than one half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land.

(2) Provided that if and when the land on the opposite side of such road footpath or way shall be in course of being built

on the owner of such land shall complete the widening of such road footpath or way so as to comply in all respects with the byelaws of the Corporation. A.D. 1914.

39.—(1) Where in the opinion of the Corporation a new street not being a back street will form a continuation of or means of communication with a main thoroughfare in the borough or a continuation of or means of communication with a main approach to the borough the Corporation may if they see fit require the houses or other buildings intended to be erected in such new street to be set back from the centre line thereof to such distance not exceeding forty feet as they may see fit and the Corporation shall thereupon make full compensation to the owner or owners of and to any other person interested in the lands abutting upon the said new street for any damage which may be sustained by him or them by reason of such houses or other buildings being required to be set back as aforesaid. Width of new streets in certain cases.

(2) Provided that the Corporation may if they think fit instead of paying the compensation to such owner or owners under this section agree with him or them for the purchase of the said lands or of any part or parts thereof.

(3) For the purpose of this section “back street” means any street or passage intended to be used only as an access to the back of any building.

40.—(1) Every person who intends to form a new street shall in addition to any other information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “the building line”). Building line in new streets.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

A.D. 1914.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of any such street than two-thirds of the minimum width of street allowed by the byelaws in force for the time being the Corporation shall make compensation to the owner of the land for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

General
scheme to be
furnished
when laying
out new
streets.

41.—(1) Whenever application shall be made to the Corporation to approve the laying out of a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) within the borough the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme for the development or laying out of such estate or lands.

(2) Every person who fails to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For pre-
venting soil
sand and
other débris
from being
washed into
streets.

42.—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other débris of such lands from falling upon or being washed or carried into any street repairable by the inhabitants at large or into any sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded.

(2) If any person shall for one month after notice in writing from the Corporation fail in any respect to comply with the

provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1914.

43.—(1) Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street. Forecourts to be fenced off from streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

44.—(1) Before any name is given to any street notice of the intended name shall be given to the Corporation and the Corporation may by notice in writing given to the person by whom notice of such intended name has been given to them at any time within one month after receipt of such notice object to such intended name upon the ground that it is the same as the name of an existing street in or in the neighbourhood of the borough or so similar thereto as to be likely to cause confusion and it shall not be lawful to set up any name to any street until the expiration of one month after notice thereof has been given as aforesaid to the Corporation or to set up any name objected to as aforesaid. Naming of streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall prejudice or affect the existing powers and duties of the Corporation in regard to the naming of streets.

45.—(1) The Corporation may grant to the owner or with consent of the owner to the lessee or occupier of any premises abutting upon any street repairable by the inhabitants at large a licence to construct and use a way (exclusive or otherwise) for himself his servants and agents at all times with or without trucks by means of a bridge over such street for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given on such terms or at such rent and with under and Power to grant licences for bridges over streets.

A.D. 1914. subject to such covenants conditions and agreements as to the Corporation may seem fit.

(2) Provided that any licence given under this section shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street.

(3) Provided also that in the event of the construction of any such bridge involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge shall for the purposes of the placing or maintenance of overground telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1913 be deemed part of the street or road which it crosses.

(4) If any person shall construct a bridge over any such street without such licence or shall not construct or use the same in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Trees or
shrubs over-
hanging
streets and
footpaths.

46.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers or to interfere with the construction or working of any tramways or trolley vehicles (including the equipment thereof) or with the clear and safe passage of the tramcars trolley vehicles or omnibuses and the passengers thereon the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he gives written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(3) Notice of the right to appeal shall be contained in or endorsed on every notice served by the Corporation under this section. A.D. 1914.

47. The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the borough of such dimensions and in such positions as they think fit. Street orderly bins.

48.—(1) All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Corporation and in case the Corporation for a space of six weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof. Elevation of buildings erected on front lands to be subject to approval of Corporation.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

49.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Erection of buildings to greater height than adjoining buildings.

A.D. 1914.

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(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Byelaws as
to floor area.

50. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Provision of
storage for
food in new
houses.

51. Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Means of
escape from
buildings in
case of fire.

52.—(1)—(a) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel restaurant hospital boarding-house common lodging-house or school; and

(b) Every new building exceeding thirty-five feet in height used or intended to be used as a shop in which building sleeping accommodation is or is intended to be provided for persons employed in or about such shop;

shall be provided on the storeys the upper surface of the floor whereof is above twenty-two feet from the street level with such means of escape in the case of fire for the persons dwelling employed or sleeping therein or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2)—(a) From and after the first day of January nineteen hundred and fifteen the Corporation in the case of every existing building exceeding thirty-five feet in height and used or intended to be used as a shop and in which building sleeping accommodation is or is intended to be provided for persons employed in or about such shop may if in the opinion of the Corporation such building is not provided with proper and sufficient means of escape therefrom in case of fire for the persons dwelling or sleeping therein at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified

in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required. A.D. 1914.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(3) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(4) For the purposes of this section the height of any building shall be measured from the street level to the highest part of the wall where the same terminates at the eaves or at the parapet of the roof.

(5) Nothing contained in this section shall be deemed to interfere with the operation of section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or of any Act amending the same.

(6) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

53.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building or of any works in the borough shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such construction reconstruction or alteration such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed. Sanitary conveniences for workmen engaged on buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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Provisions as
to house
without
water
supply.

54. The owner of any dwelling-house or tenement which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house or tenement shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house or tenement was erected before the passing of this Act and such supply is not available.

Corporation
may require
enlarged
sewer.

55. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

56. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Corporation
may order
houses to be
drained by
a combined
drain.

57.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them except with the consent of the owner or owners of the said house.

(4) Section 24 (Provisions of Public Health Act 1875 as to drains to apply to drains for combined drainage) of the Act of 1881 shall not apply to any drain other than a drain to which it applied at the passing of this Act. A.D. 1914.

58. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recoverable before a court of summary jurisdiction. Power to lay drains in private streets.

59.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws or regulations relating to the drainage of existing buildings. Reconstruction of drains.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

60.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation or to the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so. Notice of intention to repair drains

(2) Free access to such drain or work of repair shall be afforded to the surveyor or to any officer of the Corporation authorised in writing by the town clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

61.—(1) If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair Improper construction or repair of water-closet or drain.

A.D. 1914. — was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful
damage to
drains water-
closets &c.

62.—(1) If any person cause any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds.

(2) Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Power to
close pol-
luted well
tank cistern
or pump.

63.—(1) On the representation of any person to the Corporation that the water in any well tank or cistern whether public or private or supplied from any public pump is used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man and is so polluted or is likely to be so polluted as to be injurious or dangerous to health a court of summary jurisdiction on complaint by the Corporation and after hearing the person who is the owner or occupier of the premises to which the well tank or cistern belongs if it be private or in the case of a public well tank cistern or pump is alleged in the complaint to be interested in the same or after giving him an opportunity of being heard may by summary order direct the well tank cistern or pump to be permanently or temporarily closed or make such other order as appears to the court requisite to prevent injury or danger to the health of persons drinking the water.

(2) The court may if they see fit cause the water complained of to be analysed at the cost of the Corporation. A.D. 1914.

(3) If the person on whom the order is made fails to comply therewith he shall be liable to a penalty not exceeding twenty pounds and a court of summary jurisdiction on complaint by the Corporation may authorise the Corporation to execute the order and any expenses incurred by them in so doing may be recovered from the said person.

(4) This section shall not apply to any well tank cistern or pump of the Tilehurst Pangbourne and District Water Company Limited.

64. Any river stream or watercourse or any part or parts thereof respectively so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto or to hinder the usual effectual drainage of water through the same shall be deemed to be a nuisance within the meaning of section 91 (Definition of nuisances) of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health. Watercourse choked up to be a nuisance under Public Health Act 1875.

65. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. Penalty on occupier refusing execution of Act.

66. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a Saving for railway companies.

A.D. 1914. dwelling-house) belonging to any railway company and used by such company as part of or in connection with their railway under any Act of Parliament.

PART IV.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Power to require names of laundrymen to whom clothes &c. from infected houses are sent.

67.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who shall fail to comply with a requisition under this section shall be liable to a penalty not exceeding five pounds.

Medical examination of inmates of common lodging-houses when infectious disease prevails.

68. Whenever the medical officer shall report in writing to the Corporation or to a committee of the Corporation authorised for this purpose by the Corporation that there is a prevalence of dangerous infectious disease in the borough or in any place or district near thereto and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say):—

(1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation or such committee as aforesaid may exist or has recently existed in any

common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings:

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- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a registered common lodging-house in the borough and to the Local Government Board:
- (3) Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board:
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

69. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the borough of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such case it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Removal of
body of per-
son dying of
infectious
disease.

70. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation may

Compensa-
tion to per-
sons ceasing
employment.

A.D. 1914. — make compensation to him for any loss he may sustain by reason of such stoppage.

For regula-
ting manu-
facture and
sale of ice-
cream &c.

71.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who—

(a) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity selling his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4)---(a) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer

of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned. A.D. 1914.

(b) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

72.—(1) It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the borough and any person offending against this enactment or exposing or depositing for sale within the borough a carcase blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings. Blowing or inflating of carcasses.

(2) Provided that a person shall not be guilty of an offence under this section if he satisfies the court that the blowing or inflation was effected by mechanical means and not by human breath and that the apparatus used was clean.

73.—(1) No room shop or other part of a building in which any food is sold or prepared or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place. No place used for storage &c. of human food to be used as sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings but no penalty shall be imposed for an offence against this section if in the opinion of the court the occupation of such room shop or other part of a building in contravention of this section has not caused risk of infection or of contamination of food.

(3) The Corporation or any of their officers shall have the like right of entry into any such room shop or other part of a building as they would have had under section 102 (Power of entry of local authority) of the Public Health Act 1875 if there had been a nuisance arising in respect of any business carried on thereon.

(4) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

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Houses in-
fested with
vermin to be
cleansed.

74.—(1) If the medical officer or inspector of nuisances has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer or inspector of nuisances it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wallpaper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation

or any boat lying in any river canal or other water within the borough and used for the like purpose. A.D. 1914.

75.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who or (where the person is a child) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where two justices on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person. Cleansing of
verminous
persons.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such request or order the Corporation may make compensation to him for any loss he may suffer thereby.

(4) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river canal or other water within the borough and used for the like purpose.

76.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established for the first time but Offensive
trades.

A.D. 1914. also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Corporation but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on any offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) The expression "offensive trade" in this section means any trade which is for the time being an offensive trade within the meaning of section 112 of the Public Health Act 1875.

PART V.

FINANCE.

Power to
borrow.

77.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column thereof (namely):—

1	2	3
Purpose.	Amount.	Period.
(a) For the construction of the tramways authorised by this Act and other purposes of the tramway undertaking of the Corporation.	£ 3,100	Thirty years from the date of dates of borrowing.

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1	2	3
Purpose.	Amount.	Period.
(b) For the provision of the trolley vehicles authorised by this Act.	£ 6,800	Ten years from the date or dates of borrowing.
(c) For the provision of the electrical equipment and the construction of the other works necessary for the tramways and trolley vehicles authorised by this Act.	6,000	Twenty years from the date or dates of borrowing.
(d) For motor omnibuses - - -	3,500	Five years from the date or dates of borrowing.
(e) For the provision of dépôt accommodation for trolley vehicles and omnibuses.	2,400	Thirty years from the date or dates of borrowing.
(f) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part II. (Tramways Trolley Vehicles and Omnibuses) of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that Part.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge—

(a) As regards money borrowed for the purposes mentioned in subsection (1) of this section the tramway undertaking of the Corporation and the borough fund and borough rate:

(b) As regards money borrowed with the consent of the Board of Trade or of the Local Government Board such revenue fund or rate as may be prescribed by the Board with whose consent the money is borrowed.

(4) The provisions of this section shall not limit the powers conferred upon the Corporation by section 44 (Power to use one form of mortgage for all purposes) of the Act of 1913.

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PART VI.

MISCELLANEOUS.

Street cries.

78. Every person who shall on Sunday in any street or public place call or shout or ring any bell or use any other noisy instrument for the purpose of selling or advertising any newspaper journal or serial shall be liable to a penalty not exceeding forty shillings.

Fire alarms.

79. The Corporation may erect or fix fire alarms in such positions in any street road or public place within the borough as they think fit. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Appoint-
ment of
deputies for
certain
officers.

80. The Corporation may from time to time appoint fit and proper persons to be deputy medical officer of health and deputy surveyor of the borough respectively during their pleasure and all things required or authorised by law to be done by or to the medical officer or the surveyor may be done by or to the deputy medical officer of health and the deputy surveyor so appointed respectively.

Power to
enter
premises.

81. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part III. and Part IV. of this Act as if those purposes had been mentioned in the said section 102.

Confirmation
of byelaws.

82. The provisions of the following sections of the Public Health Act 1875 (namely):—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 are applied by this Act.

Evidence of
appointments
authority &c.

83. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council

under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

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84. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to breach of conditions of consent of Corporation.

85.—(1) Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing works for owner Corporation liable for negligence only.

(2) Section 69 (In executing works in default of owner Corporation only liable for negligence) of the Act of 1881 is hereby repealed.

86. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or

Apportionment of

A.D. 1914.
expenses in
case of joint
owners.

do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

As to appeal.

87. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of this Act or by any conviction or order by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Recovery of
penalties &c.

88. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
demands.

89. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Informations
by whom to
be laid.

90. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Compensa-
tion how to
be deter-
mined.

91. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

92. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

A.D. 1914.
Damages
and charges
to be settled
by justices.

93. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges not
disqualified.

94. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for
indictments
&c.

95. The following provisions of the Act of 1913 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

Application
of provisions
of Act of
1913.

Section 4 (Application of Reading Corporation Act 1881);

Section 11 (Power to purchase additional lands by agreement);

Section 30 (Section 234 of Public Health Act 1875 not to apply);

Section 31 (Mode of raising money);

Section 32 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 33 (Mode of payment off of money borrowed) except subsection (2);

Section 34 (Sinking fund);

Section 35 (Protection of lender from necessity of inquiry);

Section 36 (Corporation not to regard trusts);

Section 37 (Appointment of receiver);

Section 38 (Application of money borrowed);

Section 39 (Expenses of execution of Act);

A.D. 1914.

Section 40 (Audit of accounts);

Section 52 (Inquiries by Local Government Board);

Section 54 (Application of section 265 of Public Health Act 1875); and

Section 55 (Powers of Act cumulative).

For protec-
tion of Con-
servators of
River
Thames.

96. For the protection of the Conservators of the River Thames the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated herewith or in any other Act have effect unless otherwise agreed in writing (that is to say):—

(1) The Corporation shall not in the exercise of the powers conferred by this Act either temporarily or permanently lessen or interfere with the headway or waterway of or under any existing or already authorised bridge over the River Thames:

(2) The provisions of the section of this Act whereof the marginal note is “Watercourse choked up to be a nuisance under Public Health Act 1875” shall not apply to the River Thames.

Crown
rights.

97. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

98. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and the district fund or out of money to be borrowed under this Act for that purpose.

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